population. And because reservation could be allowed only after the 'triple test' was passed—a technical-sounding phrase that has been getting bandied about a lot of late, and goes to the nub of the issue. Anyway, at that stage, the MP government called off the election process it had initiated that month. The state election commission said it was committed to holding elections. Unlike in some other states, the Madhya Pradesh SEC is not authorised to decide on reservations—that onus rests on the



state government—so its earnestness did not resolve the core problem.

What is the triple test? A procedural grid the apex court laid down in March 2021 within which to anchor any new decision on OBC reservations. The three 'tests', taken together, hold a seeming anomaly—as the MP case was to reveal soon. In sequence, the state has to first set up a dedicated OBC commission to conduct a socio-demographic survey and determine actual numbers on the ground. (Though the survey is mandated to judge the status of communities on 11 socio-economic and representational parameters, it's limited to communities already on the Backwards list. So while a survey throws up a wealth of fresh data—both concrete and qualitative—the OBC list itself does not get updated.)

NEW DATA SHOWS A 51% OBC POPULATION IN MADHYA PRADESH. BUT RESERVED SEATS? ONLY 14%

Two, this statutory body would then adjudge the proportion of reserved seats warranted by the population on the ground. Three—and here lies the rub—the overall quantum of reserved seats cannot breach the old Supreme Court-mandated 50 per cent cap on all quotas.

The anomaly came to light when the issue returned to centrestage in early May, as the SC began hearing the Maharashtra case. On May 9, the MP government submitted its data: the OBC population in the state was around 51 per cent. The court, in its first ruling on May 10, disregarded that and ordered polls to be held without OBC reservation if the state had not conducted the triple test. The heated political volleys resumed. To signal how serious he was about the issue, Chouhan cancelled a foreign tour and said his government would file an appeal. This was duly done and, on May 17, the court heard the fresh plea. On May 19, it accepted the state OBC Welfare Commission's report and allowed elections with OBC reservation. The BJP was relieved, but the elation was muted. The court was firm on the 50 per cent cap. Now, the state had conducted the last local body polls—in 2014 (rural) and 2015 (urban)—with 25 per cent seats reserved for OBCs. This now has to be scaled down to 14 per cent—barring in a few seats where the numbers warrant more. The existing quotas—20 per cent ST, 16 per cent SC—left only that much space. Also, the new allocations meant cancelling the no-rotation plan. As for the 'OBC Welfare Commission', thereby hangs another tale. It was a parallel body set up by Chouhan to nullify the existing commission, at whose helm the outgoing Kamal Nath regime had installed a pro-Congress man.

Maharashtra, meanwhile, suffered out of its own lethargy—having fulfilled only one of the three 'tests'. It set up an OBC commission in March 2021 under former judge Anand Nirgude but allocated no funds for some six months. Officials and ministers also wasted time quibbling over methodology—one view favoured an exhaustive door-to-door survey, others suggested a thriftier sample survey. Finally, the OBC commission submitted an interim report in February, recommending a 27 per cent OBC reservation. The SC rejected it, saying it was based on secondary sources, not actual ground work. (A matter of contention now, since the MP data too is read off other data.) In March, another committee was formed to adjudge quotas anew—the report is due in June. "We will approach the SC with a fresh request," deputy CM Ajit Pawar said on May 16. All 23 municipal corporations, 215 municipal councils and 34 zila parishads are due for polls this year.

Back in MP, the politics is hotting up. Panchayat polls are not held on party lines, but elections to urban bodies are—and 317 out of 411 will see voting after the panchayats. These will be a barometer of Chouhan's general popularity as well as of the OBC mood. The theoretical riddle will linger, though. "Reservation will be halved. This is nothing but a defeat," says Jabalpur-based advocate Rameshwar Thakur, one of the original petitioners. "There's nothing to celebrate." ■

–with Kiran D. Tare